

standard is articulated in *O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1463. The showing must be supported by competent evidence establishing a factual basis for relief, as emphasized in *Ancora-Citronella Corp. v. Green* (1974) 41 Cal.App.3d 146, 150. Declarations submitted in support of such motions must be made under personal knowledge to be admissible, pursuant to Evidence Code section 702.

Defendant makes no such showing. It is unclear what the photos submitted as evidence in this motion are introduced to show. The declarations of Defendant include long recitations of recent events. Perhaps the best way of handling this pro per v. pro per situation, AS THE Court is thinking, is to discuss these matters in open court, but as is, the moving papers are not formatted to provide for relief.

2.

CASE #	CASE NAME	HEARING NAME
CVME2508525	DOE A.G. VS COUNTY OF ORANGE	MOTION TO QUASH PLAINTIFF'S DOCUMENT SUBPOENA TO THE CUSTODIAN OF RECORDS FOR THE SHERIFF'S DEPARTMENT

Tentative Ruling Motion to quash – District Attorney's Office Records: QUALIFIED DENIED with "meet and confer" ordered.

The motion to quash is DENIED for reason that the categories of documents requested by the subpoena are reasonably particularized and may be relevant or reasonably calculated to lead to admissible evidence. Discovery should be limited to matters which are not privileged and not within the scope of third-party right to privacy (Code Civ. Proc., § 2017.010) and, therefore, production should be subject to a joint stipulation containing a "first look" provision allowing the County's counsel to review and redact information which may disclose the identity of minor victims and to prepare a privilege log describing the redactions. The parties are ordered to meet and confer on entering a joint stipulation before Defendant may issue and serve amended subpoenas.

Motion to quash – Sheriff's Department Records: QUALIFIED DENIED with "meet and confer" ordered.

The motion to quash is DENIED for reason that the categories of documents requested by the subpoena are reasonably particularized and may be relevant or reasonably calculated to lead to admissible evidence. Discovery is be limited to matters which are not privileged and not within the scope of third-party right to privacy (Code Civ. Proc., § 2017.010) and, therefore, production should be subject to a joint stipulation containing a "first look" provision allowing the County's counsel to review and redact information which may disclose the identity of minor victims and to prepare a privilege log describing the redactions. The parties are ordered to meet and confer on entering a joint stipulation before Defendant may issue and serve amended subpoenas.

Defendant County of Orange ("Orange") moves for the second time to resolve discovery issues relating to Plaintiff's Subpoenas Duces Tecum served upon two separate governmental agencies: the Orange County District Attorney's Office and the Sheriff's

Department. The subpoenas seek to obtain criminal investigative records pertaining to Beccy Hasselbarth, another defendant in this case who was the alleged perpetrator of childhood sexual assault committed against Plaintiff. The County requests that the Court grant an order quashing the subpoenas precluding the production of the subpoenaed records.

Plaintiff sued the County of Orange for childhood sexual abuse that occurred in 2001 through 2002 when Plaintiff was in custody of a juvenile detention facility, the Los Pinos Conservation Camp, operated by the County's juvenile justice system. Plaintiff alleges, among other things, that the County failed its duty to properly supervise Plaintiff, who was then a minor, and to adequately investigate, hire, train, supervise and oversee the alleged perpetrator (Beccy Hasselbarth) who was at the time employed by the County as a juvenile corrections counselor/supervisor. Plaintiff also alleges that the County failed its mandatory duty to report suspected child abuse to law enforcement as required by the Child Abuse and Neglect Reporting Act ("CANRA", Pen. Code, § 11164 et seq.). On August 05, 2025, Plaintiff filed his operative First Amended Complaint ("FAC"), alleging the following three causes of action against the County: 3rd cause of action (negligent hiring, supervision, and retention of unfit employee, Gov.Code, § 815.2 and 820); 4th cause of action (failure to report suspected child abuse, Gov. Code, §§ 815.2, 815.6, and 820); and 5th cause of action (negligent supervision of a minor, Gov. Code, §§ 815.2 and 820)

The two instant motions were filed in response to Plaintiff's second attempt to subpoena documents from the Orange County District Attorney's Office and the Sheriff's Department. In his first attempt, on January 22, 2026, Plaintiff issued a business records subpoena to the Orange County District Attorney's Office, seeking generally: "Any and all DOCUMENTS, investigative reports, police reports, supplemental reports, witness statements, criminal case records, pleadings, and evidence relating to BECCY HASSELBARTH (DOB 10/12/1971)." (Declaration of Frances M. Clark ISO Motion re District Attorney Records ["Clark Decl. - DA"], Ex A.) Also on January 22, 2026, Plaintiff issued a business records subpoena to the Orange County Sheriff's Department, seeking generally "Any and all DOCUMENTS in the criminal case investigative file regarding the investigation into BECCY HARSELBARTH (DOB: 10/12/1971), sexually assaulting and molesting minors including but not limited to all recorded statements, all recorded interviews, all video interviews, all videos (explicit videos may be redacted to remove body parts), photographs, all statements, all witness statements, all text messages, all social media messages, all text messages, all electronics evidence, all photos (graphic photos may be redacted), all evidence, audio recordings, all police reports and supplemental police reports." (Declaration of Frances M. Clark ISO Motion re District Attorney Records [Clark Decl. – Sheriff"], Ex A.)

The County moved to quash both subpoenas, and, on April 07, 2026, the Court granted the motions without prejudice, noting that the categories of documents requested by the subpoenas, as framed, were overbroad as to time and scope and not reasonably particularized for each category of documents being requested, which may include records that are privilege and fall within the scope of third-party right to privacy. The Court further instructed that Plaintiff, in seeking the records, should do so by modifying the subpoenas in a manner to seek only such records which are reasonably particularized and within the scope of permissible discovery. (See Minute Orders dated April 07, 2026.)

Subsequently, on May 15, 2026, Plaintiff issued a business records subpoena to the Orange County District Attorney's Office seeking records limited only to the criminal prosecution of Hasselbarth between January 1, 2005, and December 31, 2008, concerning sexual conduct involving minors at the Los Pinos Conservation Camp:

All charging documents, amended charging documents, plea forms, sentencing records, minute orders, probation terms, disposition records, police reports, supplemental reports, investigative reports, witness statements, interview summaries, recorded interviews, audio recordings, video recordings, photographs, complaints, referrals, evidence logs, and other factual records created, maintained, obtained, or received by the Orange County District Attorney's Office between January 1, 2005 and December 31, 2008 concerning BECCY HASSELBARTH (DOB: 10/12/1971), including records relating to the criminal prosecution of BECCY HASSELBARTH in Orange County Superior Court Case No. 06SF0883, and allegations of sexual abuse, sexual misconduct, unlawful sexual conduct, grooming, inappropriate relationships, boundary violations, or other inappropriate sexual conduct involving minors at Los Pinos Conservation Camp

The subpoena explicitly excluded any privileged materials to be described in a privilege log and indicated that any identifying information of nonparty minors or information which would otherwise fall within Welfare and Institutions Code section 827 should be appropriately redacted or handled through appropriate procedures to preserve confidentiality, including an in-camera review.

Also, on May 15, 2026, Plaintiff issued a business records subpoena to the Orange County Sheriff's Department seeking identical records limited only to the criminal investigation and related prosecution of Hasselbarth between January 1, 2005, and December 31, 2008, concerning sexual conduct involving minors at the Los Pinos Conservation Camp. The subpoena also excluded privileged materials and invited identifying information regarding minors to be subject to redactions and for records falling within section 827 to be handled through the appropriate procedure.

The County seeks for orders to quash the subpoena on essentially the same grounds on which it moved to quash for the first time. It argues that the subpoenas seek post-abuse documents which are not relevant to the alleged sexual abuse of Plaintiff in 2001 through 2022 or to prove the County's pre-incident knowledge of Hasselbarth's propensity in support of the claim for negligent hiring, supervision, or retention. The County also argues that the documents relating to sexual abuse of a minor are within the exclusive jurisdiction of the juvenile court under Welfare and Institutions Code sections 300 and 827 and cannot be disclosed without an order of the juvenile court. The County also argues that the

subpoenas seek information protected by Pitchess and Evidence Code section 1043 relating to peace officer privacy. The County also argues that the information Plaintiff is seeking is also covered by third-party privacy rights.

In summary, the County's objections are meritless. The motions to quash should be denied for reason that the categories of documents requested by the subpoenas are reasonably particularized and may be relevant or reasonably calculated to lead to admissible evidence. However, any production of records under the subpoenas should be subject to a first-look review by the County.

The procedures available to obtain documents from a nonparty are the "records only" and "records and testimony" deposition subpoenas. (*Monarch Healthcare v. Superior Court (Cassidenti)* (2000) 78 Cal.App.4th 1282, 1287 (Monarch).) "A deposition subpoena which seeks only business records simply allows a party to obtain these records without the formality of requiring the testimony of the custodian. [Citation.]" (*Naswer v. Lakeridge Athletic Club* (2014) 227 Cal.App.4th 571, 577, internal quotation mark omitted.) The statute does not define the term "business record," but, in the context of the Evidence Code, "business" includes "every kind of business, *governmental activity*, profession, occupation, calling, or operation of institutions, whether carried on for profit or not," and "record" includes "every kind of record maintained by such a business," and that "a business records subpoena may be used to obtain 'all or any part of the records of the business' upon which the subpoena is served." (*Urban Pacific Corp. v. Superior Court* (1997) 59 Cal.App.4th 688, 692, citing Evid. Code, §§1560, subs. (a) & (b), 1270, italics added.)

A deposition subpoena that commands only the production of business records for copying must designate the business records to be produced either by: "Specifically describing each individual item" or "reasonably particularizing each category." (Code Civ. Proc., §2020.410(a).) "Generalized demand, insupportable by evidence showing at least the potential evidentiary value of the information sought, are not permitted." (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 218 [motion to compel production of business record from a nonparty].) Although the section of the Discovery Act (former section 2020 of the Code of Civil Procedure) contains no specific requirement for a party seeking production of document from a nonparty to "set forth specific facts showing good cause justifying the discovery sought," as it is required for compelling document production from a party (Code Civ. Proc., §2031.310), the court in *Calcor Space* noted that "since it is unlikely the Legislature intended to place greater burdens on a nonparty than a party to the litigation, we read a similar requirement into [Section 2020]." (*Id.* at 224.)

Either the nonparty witness who has been subpoenaed, or any party to the action, may challenge the deposition subpoena. A deposition subpoena may be attacked for: defects in form or content of the subpoena, such as inadequate description of requested documents in subpoena; records sought not within permissible scope of discovery (i.e., privileged, privacy or attorney work product; or not "relevant to the subject matter"; unjustly burdensome or oppressive demands; "consumer's" right of privacy in "personal records"). (Code Civ. Proc., §1985.8(e).)

Here, both motions are denied for reason the categories of records sought by the subpoenas are reasonably particularized and good cause has been shown. The motions are nearly identical, and the substance of the County's arguments presented therein will be addressed together.

The County makes numerous meritless arguments based on inapplicable statutory provisions. First, the County argues at length that the records demanded by Plaintiffs come within the purview of the juvenile court under Welfare and Institutions Code section 827, which requires prior order from the juvenile court before disclosure by the public agency served with the subpoena. However, that section governs records that are considered “juvenile case file,” which is specifically defined by statute to mean “a petition filed in a juvenile court proceeding, reports of the probation officer, and all other records, including any writing as defined in Section 250 of the Evidence Code, or electronically stored information relating to the minor, that is filed in that case or made available to the probation officer in making the probation officer’s report, or to the judge, referee, or other hearing officer, and thereafter retained by the probation officer, judge, referee, or other hearing officer.” (Welf. & Instit. Code, § 827(e).) The definition does not mention any records maintained by the District Attorney’s office or the sheriff’s department. Nor do the records sought by Plaintiff pertain to any case filed in the juvenile court pertaining to a minor. The County, further relying on case law and statutory provisions which have no application to this matter, argues that there is no requirement to file a dependency petition as a prerequisite to the exercise of juvenile court jurisdiction, and, on that basis, argues that the records subpoenaed by Plaintiff also fall within the juvenile court’s jurisdiction because the criminal investigation into Hasselbarth necessarily includes information regarding minors who were victims of sexual assault. (See *In re Elijah S.* (2005) 125 Cal.App.4th 1532, 1544.) However, the jurisdictional question involved in the case cited by the County was specifically raised in relation to a provision under section 827 regarding the mandatory release of juvenile case files pertaining to a deceased child (Welf. & Instit. Code, § 827(a)(2)) and has no application in this case.

Nor does Welfare and Institution Code section 300 support the County’s position that the subpoena seeks records which prohibited from disclosure unless authorized by the juvenile court because minors who suffered sexual abuse are under the jurisdiction of the juvenile court. Section 300 broadly provides that “[a]ny child’ who has suffered specified physical or emotional neglect or abuse – or who is at ‘substantial risk’ of suffering such neglect or abuse in the future – ‘is within the jurisdiction of the juvenile court which may adjudge that person to be a dependent child of the court.’ (See *In re Elijah S.*, *supra*, 125 Cal.App.4th at 1544.) However, as noted in *In re Elijah*, a case the County relies on, “the specific description of children ‘within the jurisdiction of the juvenile court’ under Section 300 include any child who has suffered, or is at substantial risk of suffering, serious physical harm, illness, emotional damage, sexual abuse, severe physical abuse, or lack of provision for support, inflicted by or at the responsibility of that child’s parent or guardian.” (*Ibid.*) The criminal prosecution or investigative records sought by the civil action subpoenas in this case do not relate to any dependency issues involving the minor’s parent or guardian.

Moreover, the County argues that the subpoenaed records encompass information regarding misconducts committed by Hasselbarth during her capacity as a peace officer and are therefore subject to the procedures under Evidence Code section 1043, which require Plaintiff to bring a *Pitchess* motion² before requesting the disclosure of records. This argument fails in that the *Pitchess* procedure applies when seeking disclosure of

² This procedure known as the “Pitchess” motion derives its name from *Pitchess v. Superior Court* (1974) 11 Cal.3d 531.